

C.C.R.B CASE CLOSING FORM

Investigator assigned: Norberg - McClain		Team: 4	CCRB#: 9804043	☒ Force ☒ Discourtesy ☒ Abuse ☐ O.L. ☒ Injury
Date of incident: 9/10/99	Time of incident: 2:00 PM	Location of incident: 138th Street and 12th Ave, Manhattan	Pct. of occurrence: 030	Date S.O.L. Expires: 3/10/00
Date reported: 9/15/98	Time reported: 3:25 PM	To whom/where/how reported: Forwarded from IAB		
Complainant: § 87(2)(b)		Home address: § 87(2)(b)		
Victim(s): § 87(2)(b)		Home address: Unknown		
Witness(es): § 87(2)(b)		Home address: Unknown		
Subject officer(s) (include rank): SGT Michael Musso PO Ronald Luparello PO Michael Kane PO Joseph Vega		Shield: 4046 27134 29553 20715	Tax: 889120 916088 915978 898702	Command: 030 030 030 PSA 8 (formerly, 030 PCT) § 87(2)(g)
Witness officer(s) (include rank): PO Andrew Ferguson		Shield: 12368	Tax: 915702	Command: 030

Allegation(s) by letter:	Recommendation(s):
✓ - A. PO Vega used excessive force when he pushed Mr. § 87(2)(b) against his automobile by his neck in violation of PG 104 – 01.	A. SUBSTANTIATED
✓ - B. PO Vega used excessive force when he squeezed Mr. § 87(2)(b) testicles during a frisk in violation of PG 104 – 01.	B. SUBSTANTIATED
C. PO Kane used excessive force when he squeezed § 87(2)(b) testicles during a frisk in violation of PG 104 – 01.	C. UNSUBSTANTIATED
✓ - D. PO Vega abused his authority when he frisked Mr. § 87(2)(b) in violation of PG 116 – 33.	D. SUBSTANTIATED
E. PO Luparello abused his authority when he attempted to force his finger between Mr. § 87(2)(b) buttocks in violation of PG 112 – 02.	E. UNSUBSTANTIATED
✓ - F. SGT Musso abused his authority when he told Mr. § 87(2)(b) that it was illegal to videotape police officers in violation of PG 104 – 01.	F. SUBSTANTIATED
✓ - G. PO Vega was discourteous when he yelled “don’t talk to me like that” at Mr. § 87(2)(b) in violation of PG 104 – 01.	G. SUBSTANTIATED
✓ - H. SGT Musso abused his authority when he purposefully gave a falsified name and shield number of another officer to Mr. § 87(2)(b) in violation of PG 104 – 01.	H. SUBSTANTIATED
§ 87(4-b), § 87(2)(g)	
§ 87(4-b), § 87(2)(g)	

Synopsis

The complainant, § 87(2)(b) alleges that on 9/10/98 he was stopped at a safety checkpoint where he was instructed to step out of his car. He was asked if he had any drugs, and he replied that he did not and gave officers active consent to search his vehicle. Mr. § 87(2)(b) was frisked by an officer who, in the process, squeezed his testicles with undue force, requiring the complainant to cancel his vacation and seek medical treatment. Mr. § 87(2)(b) and his brother, also present, had a camcorder with them that they attempted to turn on during the incident, but was told by a Sergeant at the location that use of such equipment to tape officers is illegal. Mr. § 87(2)(b)'s effort to obtain the names and shield numbers of two of the officers involved in the frisk resulted in the same SGT giving intentionally falsified names and shield numbers. The camcorder, clandestinely used in the last few minutes of the incident, captured the image of the Sergeant giving out this false information. Two allegations, (D and F) are Unsubstantiated § 87(2)(g)

Summary of Complaint

On September 10, 1998 at approximately 2 PM, Mr. § 87(2)(b) was in his car with his brother, § 87(2)(b) and his brother's girlfriend, § 87(2)(b) en route to Florida for his annual vacation. On the corner of 136th Street and 12th Avenue, he was pulled over at a police checkpoint, where there were several RMP's and a marked van in the vicinity. Mr. § 87(2)(b) was asked for his license and registration, which he readily surrendered, to an officer he did not identify. An officer, who stood next to the car, inspecting the inside, saw a dealer license plate sitting on the floor of Mr. § 87(2)(b) recently - registered car. A Hispanic officer in uniform, identified as PO Vega, then told Mr. § 87(2)(b) to "get out of the car" in Spanish. Mr. § 87(2)(b) complied and was led to the rear of his car, a small 4x4 model. PO Vega asked Mr. § 87(2)(b) where he was going, to which he replied he was on his way to Florida. PO Vega then asked him if he had any drugs or weapons, to which he responded "no, you can search the car". PO Vega then yelled, "don't talk to me like that" and pushed Mr. § 87(2)(b) against his car by his neck. PO Vega then pulled Mr. § 87(2)(b) legs apart and proceeded to frisk him. Then, from behind, PO Vega grabbed Mr. § 87(2)(b) testicles with a great deal of force. During this process, an officer later identified as PO Luparello attempted to force his finger into Mr. § 87(2)(b) rectal area. Mr. § 87(2)(b) stated that was very scared and therefore maintained a calm demeanor although he was in pain.

Mr. § 87(2)(b) brother, § 87(2)(b) was then told to get out of the car, and was searched and his testicles also groped with force by PO Kane "who seemed to be about to punch him" § 87(2)(b).

The officers then finished checking the dealer license plates and, finding that they were legal, returned them to Mr. § 87(2)(b). The unidentified SGT on the scene then asked Mr. § 87(2)(b) to sign a paper stating that his plates had been returned to him.

Mr. § 87(2)(b) was then told to leave the scene, but he remained where he was and stated to the SGT that he wanted the badge numbers of the three officers who had been involved in the incident. The sergeant then told him that he was lucky he had not been arrested or given summonses for his illegal plates. Mr. § 87(2)(b) replied that if the plates had been illegal, indeed he would have been arrested or given summonses. The SGT then supplied Mr. § 87(2)(b) with the names PO Vega and PO Scramello (later identified as PO Luparello), and Mr. § 87(2)(b) drove away from the scene.

Mr. § 87(2)(b) went to § 87(2)(b) later that day to be treated for inflamed testicles. His brother, § 87(2)(b) was not in much pain and did not require medical treatment.

Results of Investigation

Mr. § 87(2)(b) the complainant, was initially interviewed at CCRB on 9/29/98. Mr. § 87(2)(b) brought with him a videotape which was shot at the time and place of occurrence, but only included brief footage of an unidentified sergeant (identified by chevrons on his arms) spelling the name of another officer and providing a shield number. The tape was reviewed several times at normal speed and several times frame by frame but the recording was not clear enough to glean any hint as to the sergeant's identity, command,

vehicle markings, nameplate, or other information. The tape was reviewed several times independently by the investigator and with Assistant Supervisors Ethan Davis and Jeff Rios, and it was concluded that no material contained in the footage was useful in identifying the subject officers.

The name and shield number of a witness officer given by the unidentified sergeant in the videotape was checked and double – checked and searched for in both the Excel and CCRB databases. The shield number, it appeared, corresponded to no officer whatsoever, and the name, as it was spelled, “SCRANELLO” or “SCRAMELLO” was also searched with no results. Dozens of variations on this spelling were attempted again with no results. In fact, it was determined that only a handful of officers on the entire force have names which contain the letter sequence “CRA” in their names, and most of them are named “Craig”. This sequence is the most clear on the videotape, although the entire spelling also appears clear.

Mr. § 87(2)(b) provided the name of the officer who initially frisked him, PO Vega, but was unable to obtain his shield number. This last name was judged to be nonspecific due to the overwhelming scores of Vegas in the NYPD, and the dozens in Manhattan North.

An effort was made to interview two witnesses, § 87(2)(b) and his girlfriend, only known as § 87(2)(b) but they departed the country shortly after the incident to return to the Dominican Republic, where they reside. The complainant was contacted and asked for information on how to contact them, but he stated he did not have that information.

A subpoena was sent to § 87(2)(b) for Mr. § 87(2)(b) medical records, but was soon returned indicating that Mr. § 87(2)(b) was seen by a doctor affiliated with the hospital, but not within the hospital’s facilities. A series of telephone calls identified Dr. § 87(2)(b) as the doctor who treated Mr. § 87(2)(b). A subpoena was sent, along with a consent form, and the medical records were received soon thereafter. (See enclosure 18 A – C)

A series of requests were made to various commands in northern Manhattan, including the 030th Precinct, Manhattan North Traffic Initiative, Manhattan North Task Force and Patrol Borough Manhattan North in an effort to identify the command of the officers conducting the checkpoint at the location in question. These requests were returned to no avail; in a call made to Patrol Borough Manhattan North, a SGT Volpe (a traffic coordinator) stated that they had no record of a checkpoint at that location, but that the Borough Command is not always notified of such activities.

The identity of the subject officers began to come into focus when other arrests made on that date were reviewed on the BADS system. The records indicated that a PO Ferguson had made an arrest near that location on the date in question. PO Ferguson was notified and interviewed on August 10, 1999. He stated that he was assigned to a “safety checkpoint” (where license, registration, ownership, sobriety and vehicular violations are scrutinized) where he effected the arrest of a person driving without a license. He stated he could not recall assisting in any frisks other than the one he himself conducted on the man he arrested on that date. PO Ferguson was shown the videotape supplied by the complainant. The audio was muted. He was asked to identify the Sergeant (the only salient human image in the footage) on the tape. He identified the officer as SGT Musso of the 030th Precinct.

PO Ferguson’s statement enabled the identification of other officers assigned to the checkpoint on that date. It also indicated that the 030th Precinct, in reporting that they had no records of a checkpoint at the location in question, incorrectly responded to an IAB request sent specifically for this information.

PO Joseph Vega was interviewed at CCRB on August 16, 1999. He stated that he did effect one arrest on the date in question, but participated in no other frisks or vehicle searches. He also stated he did not order anyone out of their car on the date in question. He provided no further information but denied all allegations as related to him.

PO Kane was slightly more helpful. He stated he did stop and frisk one person on that date, but was unable to obtain their identity. His memo book indicates that he filed a UF250 following the incident. He stated he could not remember if the person stopped was a driver, passenger or a passerby encountered during the checkpoint.

SGT Musso was interviewed at CCRB on August 18, 1999. SGT Musso stated that on 9/10/98 he was the supervisor of a traffic checkpoint on 138th Street and 12th Ave. SGT Musso recalled two arrests made on that date and displayed notations made in his memo book regarding these arrests. He could not remember if any vehicle searches were made on the date in question. He stated he is unfamiliar with any officer named Scranello or Scramello. He cannot recall if anyone on that date complained of testicular pain following a frisk, but did recall that someone was upset with the way they were stopped but could not remember further details. SGT Musso couldn't remember any incident with a person with a video camera, but stated that he would not tell anyone that it was illegal to videotape police officers because "it is not illegal to videotape police officers."

SGT Musso was asked to view the videotape of a small portion of the incident. He insisted that in a blurry portion of the audio recording, he did tell Mr. § 87(2)(b) that the name of the officer he misspelled to Mr. § 87(2)(b) was PO Luparello. He stated "I spelled the name wrong but that's the name I gave." SGT Musso stated that PO Luparello is nicknamed "Scamerello" (because he is always "scamming" on things) and that he was "confused, in a hurry" when he gave Mr. § 87(2)(b) this information. SGT Musso stated that he has known PO Luparello for several years, but probably "called him 'Scamerello' because that's what everybody else calls him."

PO Luparello was interviewed at CCRB on August 26, 1999. He stated, similar to PO Vega, that he has no recollection of incident resembling the allegations. He stated he has never heard SGT Musso give false information to a civilian, and does not remember anyone ever complaining of testicular pain following a frisk throughout his professional history.

A call was made to the office of Dr. § 87(2)(b) late in the investigation to obtain an interpretation of the medical records. Dr. § 87(2)(b) stated that Mr. § 87(2)(b) came to her with a "tender mass" in his testicles, complaining of great pain. She stated that his injuries can be consistent with considerable pressure being exerted on the testicles. He was treated with pain medication.

Conclusions and Recommendations

§ 87(2)(g). His distress regarding his injuries are evident in the videotape he provided where he exclaims, "the cop....squeezed my balls. I'm in pain". These injuries are supported by the medical records. The video also captures SGT Musso engaging in misconduct and the scenario presented, however brief, is consistent with the aftermath of such an

incident, where the complainant is trying to obtain the identities of the officers who were abusive towards him him. § 87(2)(g)

§ 87(2)(g) The subject and witness officers offered nothing to rebut the complainant's allegations, either through forgetfulness or selective memory. No documentation of this stop (summons, arrest, UF250, etc) were created in connection with this incident. § 87(2)(g)

Allegation

A. Excessive Force: PO Vega used excessive force when he pushed the complainant against his automobile by his neck in violation of PG 104 – 01.

Mr. § 87(2)(b) alleges that moments after PO Vega asked him if he had any drugs in the car, he offered consent to search the vehicle. PO Vega responded by pushing Mr. § 87(2)(b) against the back of his car by his neck. § 87(2)(g)

§ 87(2)(g) This allegation is recommended for closure as SUBSTANTIATED.

Allegation

B. Excessive Force: PO Vega used excessive force when he squeezed Mr. § 87(2)(b) testicles during a frisk in violation of PG 104 – 01.

§ 87(2)(g) This allegation is recommended for closure as SUBSTANTIATED.

Allegation

C. PO Kane used excessive force when he squeezed § 87(2)(b) testicles during a frisk in violation of PG 104 – 01.

Mr. § 87(2)(b) stated that his brother, § 87(2)(b) was frisked by PO Kane, and also complained of testicular discomfort afterwards. § 87(2)(b)

§ 87(2)(b) This allegation is recommended for closure as UNSUBSTANTIATED.

Allegation

D. PO Vega abused his authority when he frisked Mr. § 87(2)(b) in violation of PG 116 – 33.

According to NY Search and Seizure Law, during a vehicle stop, an officer is not permitted to frisk a driver unless he has a reasonable basis to suspect the individual is armed and may be dangerous.

(Kamins', pp. 342). § 87(2)(g)

This allegation is recommended for closure as SUBSTANTIATED.

Allegation

- E. PO Luparello abused his authority when he attempted to force his finger between the Mr. § 87(2)(b) buttocks in violation of PG 112 – 02.

PO Luparello was identified as the officer initially called “Scramello” by SGT Musso in the complainant’s videotape. Mr. § 87(2)(b) alleged that, while assisting PO Vega in frisking him, PO Luparello forced part of his hand between Mr. § 87(2)(b) buttocks. Although Mr. § 87(2)(b) was uncomfortable, he stated he did not necessarily interpret the gesture as an effort to violate him. He believed the act might have been pursuant to a thorough frisk. § 87(2)(g)

This allegation is recommended as UNSUBSTANTIATED.

Allegation

- F. SGT Musso abused his authority when he told the Mr. § 87(2)(b) that it was illegal to videotape police officers in violation of PG 104 – 01.

Mr. § 87(2)(b) stated that at the onset of the incident, his brother attempted to load a camcorder with a tape and begin to record the incident. Prior to completing these motions, SGT Musso told him that it was illegal to videotape officers. He was able to turn the camera on, however, at the end of the incident, when the officers were no longer focusing on their car. § 87(2)(b)

The film is very shaky, unfocused and frequently not at all focused on the intended subject § 87(2)(g)

This allegation is recommended for closure as SUBSTANTIATED.

Allegation

- G. PO Vega was discourteous when he yelled “don’t talk to me like that” at Mr. § 87(2)(b) in violation of PG

104 – 01.

§ 87(2)(g)

This allegation is recommended as SUBSTANTIATED.

Allegation

H. SGT Musso abused his authority when he purposefully gave a falsified name and shield number of another officer to Mr. § 87(2)(b) in violation of PG 104 – 01.

In the footage supplied by the complainant, SGT Musso is clearly depicted spelling the name “SCRAMELLO” or “SCRANELLO”, and giving a shield number 50705, to which this name is to correspond. In both cases, SGT Musso gave information that does not correspond to anyone within the NYPD. He attempted to explain this discrepancy by asserting that “everybody” refers to PO Luparello as “Scamello”. PO Luparello, in contrast, stated that “everybody” has called him “Lupo” since he was a child. § 87(2)(g)

This allegation is recommended for closure as SUBSTANTIATED.

§ 87(4-b), § 87(2)(g)

§ 87(4-b), § 87(2)(g)

Investigator:

John M. [Signature]

Date:

9/2/99

Supervisor:

[Signature]

Date:

Reviewed by:

[Signature]

Date:

9.7.99

Reviewed by:

Date: